

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	04 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1200-FITAP Support Enforcement Services
	Document No./Name	B-1230-FITAP Reporting to Child Support Enforcement
	Effective Date	July 1, 2019

I. STATEMENT OF POLICY

Each applicant or recipient of FITAP is required to cooperate in identifying and locating the parent(s) of a child (ren) who is absent from the home.

B-1231-FITAP - PO INITIAL REFERRAL

* Initial referrals to CSE are made at certification ** on all parents of FITAP children who are absent from the home, with the Referral Exceptions noted in B-1231-1-FITAP. These parents include:

- the child's mother,
- a man named as the child's father by the mother,
- the child's legal father. A legally responsible father is defined as a man married to the mother at the time the child is born, unless another man is presumed to be the father. (A common law union which has been formed in another state and recognized there as legally valid is considered a legal marriage in Louisiana.)

This includes a husband:

- who was legally separated or divorced from the mother less than 300 days before the birth of the child, and who has not obtained a court judgment declaring that he is not the child's father.
- who is informally separated from the mother, regardless of duration of the separation, and who has not obtained court judgment declaring he is not the child's father.
- who is aware of his wife's pregnancy at the time of the marriage, regardless of how soon the child is born after the marriage.
- the adoptive parent who has been legally granted a final decree of adoption,
- the child's natural father determined by the agency on the basis of reliable information such as:
 - A man whose name appears on the child's birth certificate as father, or
 - A man who has acknowledged paternity of the child in a written document executed before a notary public in the presence of two witnesses, or
 - A man who has been declared to be the child's father by a court judgment, or
 - A man who verbally acknowledges that he is the father, or
 - A man who is shown as the father in school records.

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Note: A biological parent of a child who has been legally adopted is no longer a parent.

* Completion of the form [OFS 4NCP](#) is required at application for households in which a legal or non-legal parent is absent unless:

- the absent parent meets a referral exception per B-1231-1-FITAP, or
- a form OFS 4NCP on the noncustodial parent has previously been submitted to CSE for this particular payee and child.

When the form OFS 4NCP is required, completion of the form [OFS 4NCP Supplement](#) is also required if the natural mother is residing in the household to establish paternity for children born out of wedlock with a non-legal noncustodial absent parent.

The application must be rejected when an applicant fails to sign and return a required OFS 4NCP or OFS 4NCP Supplement.

Referrals to CSE are made on-line by completion of the noncustodial **Absent **** Parent screen when the FITAP certification is processed. *******

* Note: Absent parents of an unborn child are not referred until after the birth of the child. **

B-1231-1-FITAP - PO Referral Exceptions

All absent parents are referred to CSE except the following:

- Parents of SSI children.
- Parents whose death has been verified.

* Note: The client's statement must be verified prior to certification. Acceptable sources of verification include, but are not limited to, death certificate, medical records, mortuary records, obituary, state or government agencies, etc.

- Biological parents of a child who has been legally adopted.
- Parents excluded by genetic test as verified by CSE or other reputable sources such as an American Association of Blood Banks (AABB) accredited laboratory that administered a legal DNA paternity test which included specimen collection by a third party trained laboratory technician after all persons being tested presented legally valid forms of identification. **

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B-1232-FITAP - PO REPORTING AFTER INITIAL REFERRAL/* SUBSEQUENT REFERRALS **

To report information, which cannot be entered on LAMI (corrections, changes or other additional information, transmitting documents relating to the establishment of paternity and child support, report the payee received child support payments, etc.) send an e-mail, fax, or other written correspondence to CSE.

*** Subsequent Referrals**

Subsequent referrals to CSE are made after certification for all parents who are absent from the home in support of FITAP children who are new household members, with the Referral Exceptions noted in B-1231-1-FITAP.

Completion of the form [OFS 4NCP](#) is required after certification for households who report a new household member (i.e. birth of a child, a child moving into the home, etc.) in which a legal or non-legal parent is absent unless:

- the absent parent meets a referral exception per B-1231-1-FITAP, or
- a form OFS 4NCP on the noncustodial parent has previously been submitted to CSE for this particular payee and child, or
- the new household member is the child of an existing noncustodial parent who has already been referred for the case.

When the form OFS 4NCP is required, completion of the form [OFS 4NCP Supplement](#) is also required if the natural mother is residing in the household to establish paternity for children born out of wedlock with a non-legal noncustodial absent parent.

Process the addition of a new household member according to [C-840-FITAP](#). Send a manual or semi-automated advance Notice of Adverse Action proposing closure if the new member is a required household member and the client fails to sign and return a required [OFS 4NCP](#) or [OFS 4NCP Supplement](#) by the due date given on the [OFS 18C](#) request for signature.

Referrals to CSE are made on-line by completion of the noncustodial Absent Parent screen when a child is added to an existing certification and the change is dispositioned.

Example 1: A household includes a natural mother payee, Susie, and her son, Jack. At certification, the absent parent, John, was referred on-line for the child, Jack. At change report, Susie reports that she gave birth to Jane who is also the non-legal child of John. The OFS 4NCP and OFS 4NCP Supplement are not required because John is an existing NCP for the case. The child, Jane, is added to the existing Absent Parent record on LAMI for John and the case is dispositioned.

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Example 2: A household includes a qualified relative grandmother payee, Rose, and her grandchildren, Holly and Dane. Holly and Dane have the same absent parents, Tom and Martina, who are both referred on-line to CSE at certification. At redetermination, Rose reports that a new grandchild, Chloe, is now living in the home. Chloe is the half-sibling of Holly and Dane. Chloe's absent parents are Bill and Martina. The OFS 4NCP is not required for Martina because she is an existing NCP for the case. The OFS 4NCP is required for Bill because he does not meet any of the exceptions listed at B-1231-1-FITAP, a form OFS 4NCP has not been previously submitted to CSE for Rose and Chloe, and Bill is not an existing NCP for the case. Upon receipt of a completed and signed OFS 4NCP form for Bill, Chloe is added to the existing Absent Parent record on LAMI for Martina, a new Absent Parent record is created for Bill, and the case is dispositioned.

II. PROCEDURES

There are no procedures associated with this policy.

III. FORMS AND INSTRUCTIONS

[OFS 4NCP Form](#) / [Instructions](#) Noncustodial Parent Information Summary

[OFS 4NCP Supplement Form](#) / [Instructions](#) Noncustodial Parent Information Summary Supplement

[OFS 18C Form](#) / [Instructions](#) Client Contact Letter **

IV. REFERENCES

[Title IV of the Social Security Act, Sections 408 and 454](#)

[LAC 67:III.1239](#)